



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Sophia Maes, Planner I

Subject: PLTA-24-1 – Amending UDC Section 5.1.5

Date: April 22, 2024

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 4/22/2024
- Public Services Committee 5/7/2024
- Second reading 5/13/2024
- Public Services Committee 5/21/2024
- Third and final reading 5/28/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their April 15, 2024, meeting and **voted 5-0** to recommend the Governing Body approve the proposed text amendment.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 5.1.5 OF THE UNIFIED DEVELOPMENT CODE TO ALLOW FOR UP TO THREE STORIES FOR DETACHED DWELLINGS, SEMI-ATTACHED DWELLINGS, AND ATTACHED DWELLINGS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code.

Section 2. That on April 15, 2024, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 5.1.5, Residential Buildings and Lot Types, of Article 5, Zoning Regulations, General Provisions, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended to allow up to three (3) stories for Lot Types DD1, DD2, DD3, DD4, DD5, DD6, DD7, DD8, SD1, SD2, SD3, AD1, AD2, and AD3.

Section 4. That Section 5.1.5, Residential Buildings and Lot Types, of Article 5, Zoning Regulations, General Provisions, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended to change Accessory Building Height to "In no case higher than the principal building" for Lot Types DD3, DD4, DD5, DD6, DD7, DD8, SD1, SD2, SD3, AD1, AD2, and AD3.

Section 5. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 6. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

(SEAL)

PATRICK COLLINS, MAYOR

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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PLANNING COMMISSION

APRIL 15, 2024

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code Section 5.1.5.

CASE NUMBER: PLTA-24-1

PREPARED BY: Sophia Maes, Planner I, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code Section 5.1.5 as outlined in this staff report and recommended by staff, noting the requests meet the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed text amendment is one of several amendments based on the Affordable Housing Task Force recommendations. One of these recommendations is to increase habitable space by allowing up to three (3) stories for residential properties (principal and accessory buildings). Staff reviewed the many Lot Types that are within the UDC and found the allowance of up to three (3) stories would be appropriate for the following lot types: Lot Types DD1, DD2, DD3, DD4, DD5, DD6, DD7, DD8, SD1, SD2, SD3, AD1, AD2, and AD3. See the attached exhibit for the proposed amendments.

The current UDC allows up to 2.5 stories for principal buildings and up to 2 stories for accessory buildings for the low-density residential lot types. The benefits of increasing the maximum height for principal and accessory buildings in these lot types outweigh the perceived costs. The perceived disadvantage of this amendment is solely the effects of increased heights in residential buildings. The increased height may not be favorable to neighbors, particularly if they worry this additional height will disrupt their view or

crowd the airspace. However, three-story buildings are possible to build as low-rise, adding to density and land efficiency without increased view disruptions. The 2021 IRC states residential “wood framed buildings” are allowed up to “three stories above grade plane in height” for health and safety.¹ While a 2.5-story building fits within this code, the IRC requirements for half-stories are misaligned with the UDC, rendering almost 100% of half-stories in Cheyenne uninhabitable space. For a half-story with a sloped roof to contain habitable space per the 2021 IRC, at least 50% of the space must have a 7-foot ceiling, and no portion can have less than a 5-foot ceiling.² This renders many half stories (per the UDC definitions) 100% uninhabitable.³ For example, an 8/12 roof pitch 2.5-story building (9’ per full story,⁴ 1368 SF Floor Area each) would have a difference of **less than 7’** for an 8/15 roof pitch 3-story building, while **adding almost 1368 SF** of habitable space (see Exhibit B). A 3-story residential building at around 39 feet in height will likely not constrict the view any more than a 2.5 story building at 32.5 feet, yet the additional habitable square footage increases from 0 square feet to 1,368 square feet, resulting in 4,104 Total SF (vs 2,736 Total SF for the 2.5-story). Not only is this important for lots holding duplexes and townhomes, but also for single family homes where the additional square footage without increasing lot size will help affordability and increase quality of daily life for young and growing families.

Additionally, this increase in maximum stories for residential lot types will allow maximum utilization of smaller infill lots that may otherwise not be worth the cost of developing (per developer calculations). This is relevant to the SD (Duplex/Semi-attached) and AD (Townhome/Attached) lot type. It is important to note that this text amendment does not require 3 stories, only that it *allows* up to three stories. This will increase land efficiency without lateral expansion, while still conforming to current UDC setback requirements. According to “Breaking the Code,” (a toolkit for Wyoming housing goals), a townhome development (AD1-3) “can easily achieve densities of 25 units per acre.”⁵ This will allow property owners and developers more flexibility, creating a diverse housing mix and increasing infill opportunities to meet the needs of a growing Cheyenne and adhering to PlanCheyenne Policy 2.3.A Mix of Housing Types (*PlanCheyenne*, page 60).

Staff believes that the proposed text amendment will allow for higher density in infill and new neighborhoods, increasing residential units and housing type mixes. This will be beneficial for the community, providing additional housing options and maximizing land and infrastructure resources.

¹ 2021 IRC §301.2.2.7

² 2021 IRC §R305.1

³ UDC §1.4.2.k.2: *Half-story*. A space under a sloping roof that has the line of intersection of the roof and the exterior wall supporting the roof not more than 3’ above the floor level, and in which space the possible floor area with head room of 6’ or more occupies between 30% and 70% of the total floor area of the story directly beneath.

⁴ UDC §1.4.2.k.1: *Story*. The portion of a building included between the surface of any floor and the surface of the floor next above it, or if there is no floor above it, then the space between the floor and the ceiling next above it or, where there is not a ceiling, to the top of the roof rafters.

a. Stories shall begin at the first-floor level that is between 3’ above finished grade and 4’ below grade.

b. The minimum story shall be 9’ and the maximum story shall be 14’, except that the height of the first story may be as high as 20’ for all non-residential buildings that are 2 stories or more.

⁵ Wyoming Business Council, et al. “Breaking the Code: Aligning Zoning Code with Housing Goals. A toolkit for Wyoming communities.” pg. 30.

PROPOSED AMENDMENTS:

The proposed amendments are to allow up to three (3) stories for residential properties (principal and accessory buildings) for Lot Types DD1, DD2, DD3, DD4, DD5, DD6, DD7, DD8, SD1, SD2, SD3, AD1, AD2, and AD3. See the attached exhibit for the proposed amendments.

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

“The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan.”

The proposed amendment is in compliance with multiple Comprehensive Plan goals and policies.

- Policy 1.1.B Flexibility to respond to market demands:
- Policy 1.4.A Infill Opportunities:
- Policy 1.4.D Infill and Revitalization Incentives
- Policy 2.3.A Mix of Housing Types:
- Policy 2.3.B: Higher Density Housing
- Policy 2.5.A: Community Housing Needs Met

Allowing 3-story residential buildings (principal and accessory) allows developers to adjust developments based on housing market demands, utilization of infill properties for higher density and affordability, and flexibility of the housing type mix. No residential building *must* be 3-stories, yet the allowance positions developers and owners the flexibility to provide more habitable square footage per parcel. This directly affects the current and projected severe market demands of housing in Cheyenne, allowing more housing units and space to be provided with limited additional land costs. Cheyenne has many infill properties that could be attractive to developers if additional square footage could be built in one development. Allowing 3-stories for residential buildings will allow maximum utilization of smaller infill lots that may otherwise not be worth the cost of developing. As stated above, a dramatic increase in habitable space can be provided without additional land and minimal infrastructure additions, resulting in a lower rents overall required to reach developer target ROIs and higher density of housing (another tool of land and resource efficiency). This flexibility in stories allowed creates opportunities for a mix of housing types, allowing variety of spaces to fit the needs of various resident types.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601.

The governing body of any city or town, by ordinance, may:

- (i) Regulate and restrict the:
 - (A) Height, number of stories and size of buildings and other structures;
 - (B) Percentage of lot that may be occupied;
 - (C) Size of yards, courts and other open spaces;

- (D) Density of population; and
- (E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.
- (ii) Establish setback building lines.

Assessment: This amendment proposes modifying the Unified Development Code to allow up to three (3) stories for residential lot types DD1-AD3. This does not affect height restrictions, setbacks, lot coverage, or allowed uses per established zone districts.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

“The amendment promotes the general health, safety and public welfare.”

This amendment would allow residential buildings (principal and accessory) up to 3 stories, increasing habitable square footage per lot and simplifying the review and inspection process. The 2021 IRC allows all residential building types up to 3 stories. The City of Cheyenne Building Department has reviewed the proposed amendment, stating it complies with one-family, two-family, and townhome scope and provisions of the current adopted International Residential Code (IRC) of "not more than three stories above grade plane in height" (IRC §301.2.2.7). Fire Safety has also reviewed this proposal and has no concerns. This amendment would align with the IRC code our Building Inspectors utilize, as well as many residential building standards throughout the nation, and does not affect the general health, safety, and public welfare.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code Section 5.1.5 as outlined in this staff report and recommended by staff, noting the requests meet the review criteria of UDC 2.4.1.d.

ADDITIONAL DOCUMENTS:

Housing Studies:

[Breaking the Code: Aligning Zoning Code with Housing Goals
2023 Housing Study](#)

Attachments:

Exhibit A — Removal of the building height maximum for residential principal and accessory buildings
Exhibit B — Square footage difference (2.5 story vs 3 story)

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

5.1.5 Residential Building and Lot Types

The following residential lot types and building standards are enabled in the various residential zoning districts. Table 5-2 establishes the range of lot and building types enabled in each of the Residential Zoning Districts. All uses of land and buildings that are enabled by Table 5-1 shall meet the Lot and Building Type standards enabled for the particular zoning district.

a. **Detached Dwelling (“Single-family”) Lot Types and Building Standards.**

TYPE DD1: DETACHED DWELLING / AGRICULTURE LOT		
Lot Area (min.)		20 acres
Lot Frontage (min.)		300'
Setbacks: Principal Building (min.)	Front	25'
	Side	25'
	Rear	25'
Setbacks: Accessory Building (min.)	Front	Behind front building line
	Side	25'
	Rear	25'
Total Lot Coverage (max.)		n/a
Building Height (max.)	Principal	Up to 2.5 3 stories
	Accessory	20' residential 50' agriculture
Zoning Districts		Permitted: AG, AR

TYPE DD2: DETACHED DWELLING / RURAL LOT		
Lot Area (min.)		5 acres
Lot Frontage (min.)		300'
Setbacks: Principal Building (min.)	Front	25'
	Side	25'
	Rear	25'
Setbacks: Accessory Building (min.)	Front	Behind front building line
	Side	25'
	Rear	25'
Total Lot Coverage (max.)		n/a
Building Height (max.)	Principal	Up to 2.5 3 stories
	Accessory	20' residential 50' agriculture
Zoning Districts		Permitted: AR, RR

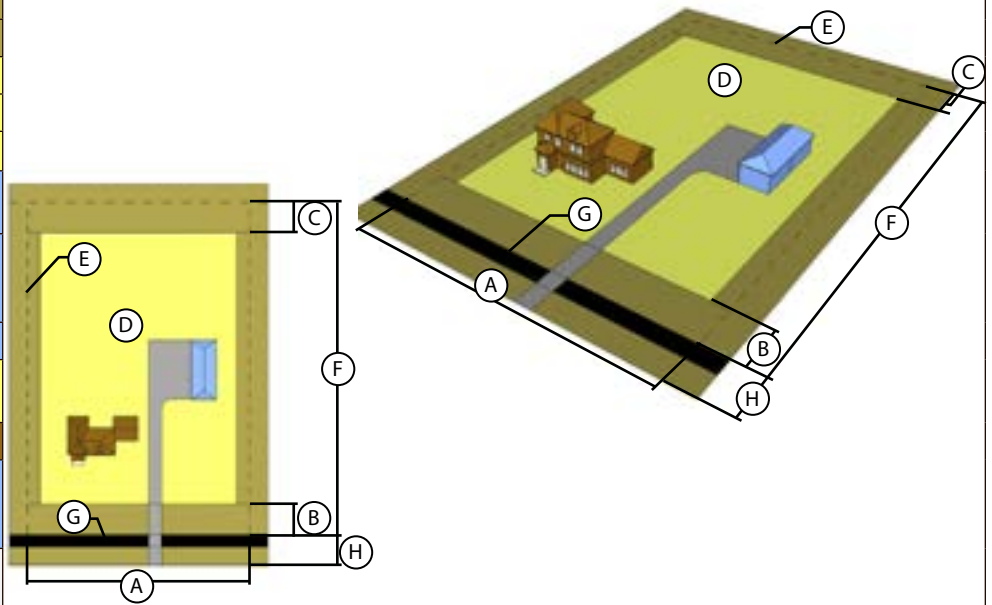
ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

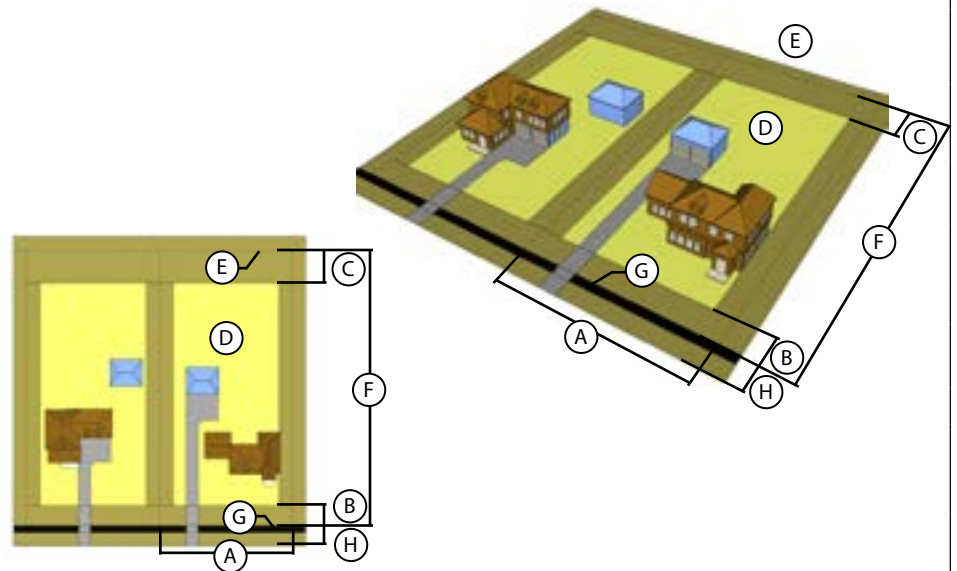
TYPE DD3: DETACHED DWELLING / LARGE LOT

Lot Area (min.)		1.5 acres
Lot Frontage (min.)		180'
Setbacks: Principal Building (min.)	Front	50'
	Side	50'
	Rear	50'
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	10' 25' on street side corner lots
	Rear	10'
Total Lot Coverage (max.)		40%
Building Height (max.)	Principal	Up to 2.5 3 stories
	Accessory	Up to 2 stories but in no case higher than the principal building
Zoning Districts		Permitted: AR, RR, LR



TYPE DD4: DETACHED DWELLING / LOW-DENSITY LOT

Lot Area (min.)		.5 acres
Lot Frontage (min.)		100'
Setbacks: Principal Building (min.)	Front	25'
	Side	10'
	Rear	25'
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	10' 25' on street side corner lots
	Rear	25'
Total Lot Coverage (max.)		40%
Building Height (max.)	Principal	Up to 2.5 3 stories
	Accessory	Up to 2 stories but in no case higher than the principal building
Zoning Districts		Permitted: AR, LR, NR-1



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|------------------------|-------------------------|
| (A) Frontage | (E) Property Boundary |
| (B) Front Setback | (F) Depth |
| (C) Rear Setback | (G) Public Sidewalk |
| (D) Buildable Lot Area | (H) Public Right-of-way |

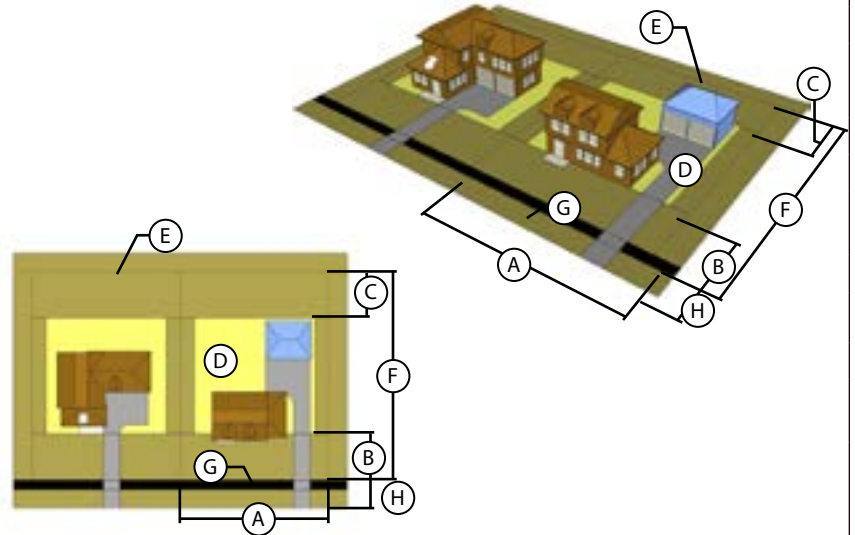
ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

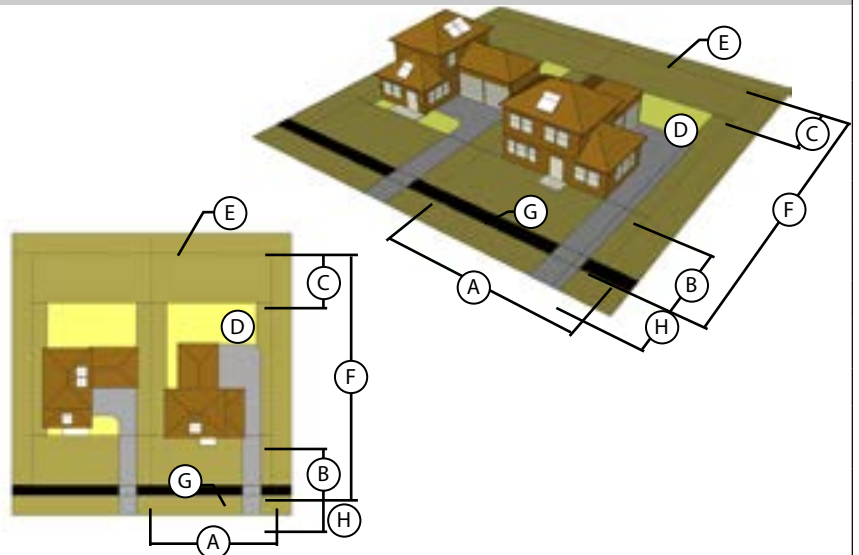
TYPE DD5: DETACHED DWELLING / SUBURBAN LOT

Lot Frontage (min.)		70'
Setbacks: Principal Building (min.)	Front	25'
	Side	7.5'
	Rear	10' on street side corner lots
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	7.5'
	Rear	25' on street side corner lots
Total Lot Coverage (max.)		60%
Building Height (max.)	Principal	Up to 2.5 stories
	Accessory	Up to 2 stories but in no case higher than the principal building
Zoning Districts	Permitted: LR, MR, NR-1	



TYPE DD6: DETACHED DWELLING / STANDARD LOT

Lot Frontage (min.)		55'
Setbacks: Principal Building (min.)	Front	25'
	Side	5'
	Rear	10' on street-side corner lots
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	5'
	Rear	25' on street side corner lots
Total Lot Coverage (max.)		60%
Building Height (max.)	Principal	Up to 2.5 stories
	Accessory	Up to 2 stories but in no case higher than the principal building
Zoning Districts	Permitted: MR, HR, NR-1, NR-2, NR-3	



- | | |
|------------------------|-------------------------|
| (A) Frontage | (E) Property Boundary |
| (B) Front Setback | (F) Depth |
| (C) Rear Setback | (G) Public Sidewalk |
| (D) Buildable Lot Area | (H) Public Right-of-way |

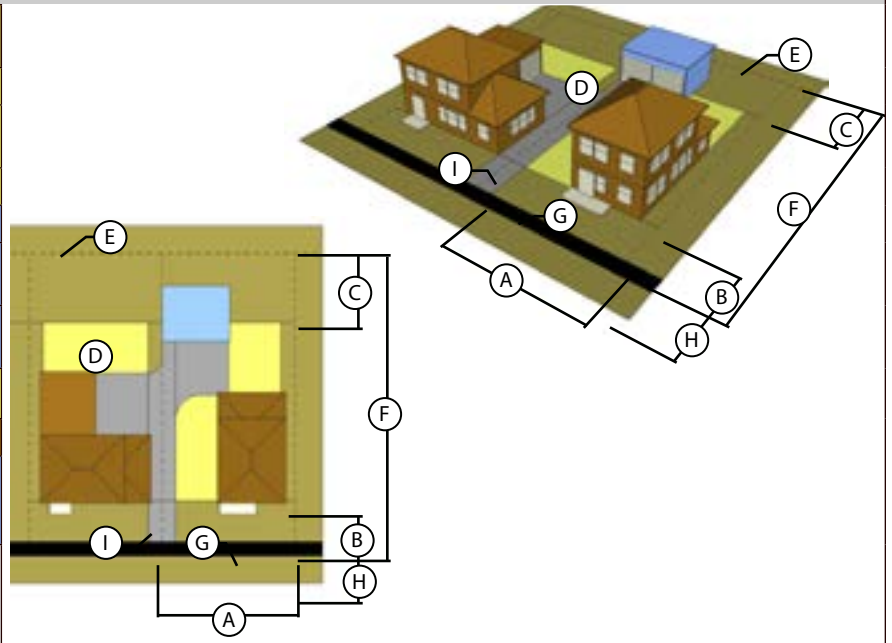
ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TYPE DD7: DETACHED DWELLING / SMALL LOT

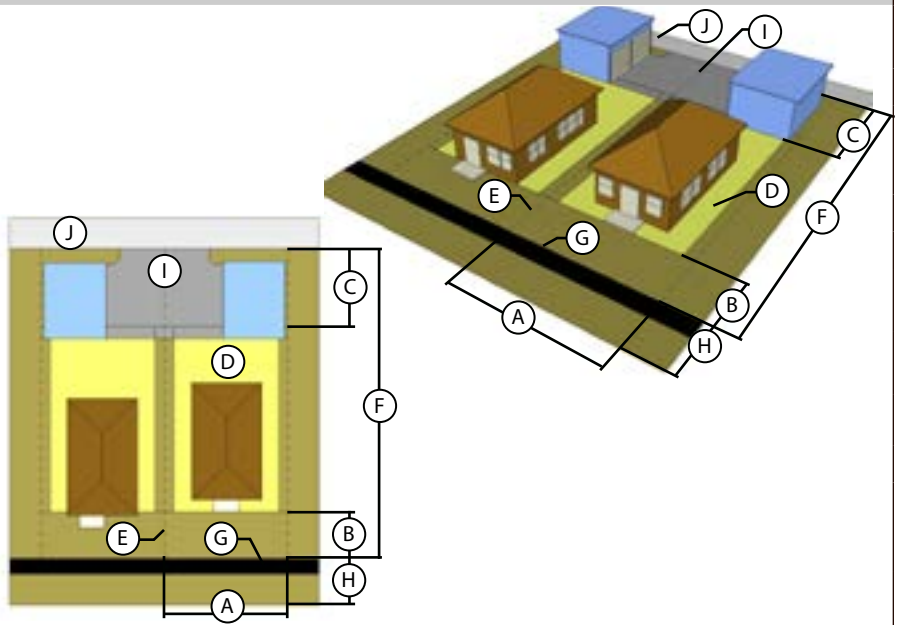
Lot Frontage (min.)		40' 45' on corner lots
Setbacks: Principal Building (min.)	Front	25'
	Side	5' 10' on street side corner lots
	Rear	20'
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	2', 0' if party wall [a] 15' on street side corner lots
	Rear	2' 5' if alley loaded
Total Lot Coverage (max.)		60%
Building Height (max.)	Principal	Up to 2.5 stories
	Accessory	Up to 2 stories but in no case higher than the principal building
Zoning Districts		Permitted: MR, HR, NR-1, NR-2, NR-3



[a] 0' setbacks on attached buildings require a party wall meeting all building code standards and proper designation on a recorded plat.

TYPE DD8: DETACHED DWELLING / URBAN LOT

Lot Frontage (min.)		30' 42' on corner lots
Setbacks: Principal Building (min.)	Front	15'
	Side	3', but at least 10' both sides combined [a] 10' on street side corner lots
	Rear	20'
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	2', 0' if party wall [a] 15' on street side corner lots
	Rear	2' 5' if alley loaded
Total Lot Coverage (max.)		70%
Building Height (max.)	Principal	Up to 2.5 stories
	Accessory	Up to 2 stories but in no case higher than the principal building
Zoning Districts		Permitted: NR-2, NR-3



[a] Setbacks of 0' are allowed for zero lot line development provided a minimum 10' separation is maintained between all principal buildings and appropriate maintenance easements and covenants are recorded with the plat.

(A) Frontage	(D) Buildable Lot Area	(G) Public Sidewalk	(J) Alley
(B) Front Setback	(E) Property Boundary	(H) Public Right-of-way	
(C) Rear Setback	(F) Depth	(I) Shared Driveway	

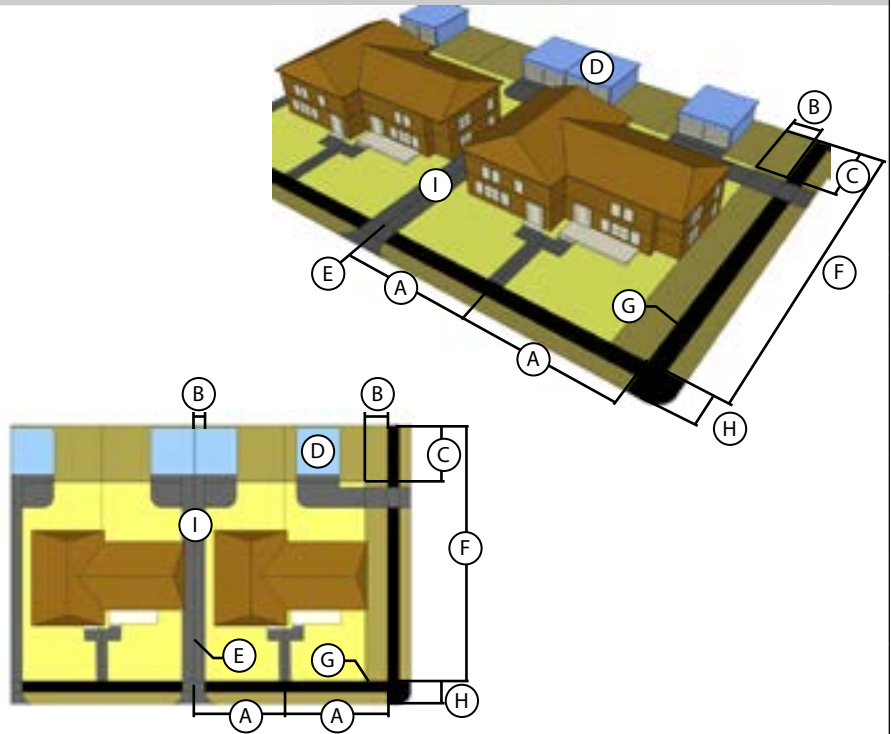
ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

b. Semi-Attached Dwelling ("Duplex") Lot Type and Building Standards.

TYPE SD1: SEMI-ATTACHED DWELLING / LARGE LOT		
Lot Frontage (min.)		40' 45' on corner lots
Setbacks: Principal Building (min.)	Front	Context of other adjacent detached dwellings or 25', whichever is less.
	Side	0' attached side [a] 5' detached side 10' on street side corner lots
	Rear	20'
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	2', 0' if party wall [a] 15' on street side corner lots
	Rear	2' 5' if alley loaded
Total Lot Coverage (max.)		60%
Building Height (max.)	Principal	Up to 2.5 stories
	Accessory	Up to 2 stories but in no case higher than the principal building
Zoning Districts		Permitted: LR, NR-1, MR



[a] 0' setbacks on attached dwellings require a party wall meeting all building code standards and proper designation on a recorded plat.

(A) Frontage	(D) Accessory Building	(G) Public Sidewalk
(B) Side Setback	(E) Property Boundary	(H) Public Right-of-way
(C) Rear Setback	(F) Depth	(I) Shared Driveway

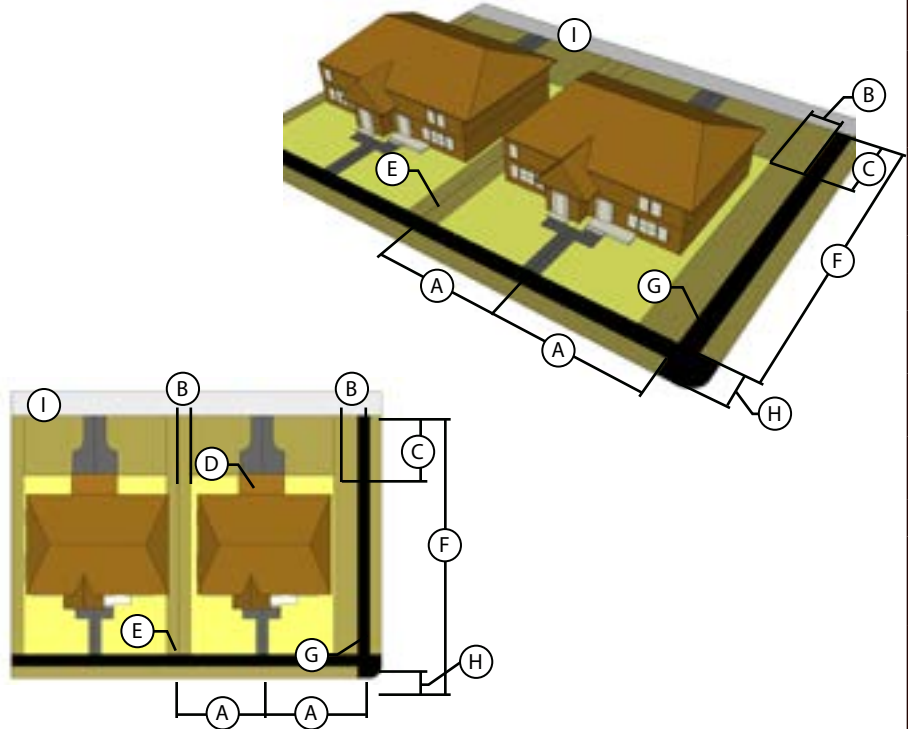
ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TYPE SD2: SEMI-ATTACHED DWELLING / STANDARD LOT

Lot Frontage (min.)		35' 40' on corner lots
Setbacks: Principal Building (min.)	Front	Context of other adjacent detached dwellings or 25', whichever is less.
	Side	0' attached side [a] 5' detached side 10' on street side corner lots
	Rear	20'
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	2', 0' if party wall [a] 15' on street side corner lots
	Rear	2' 5' if alley loaded
Total Lot Coverage (max.)		60%
Building Height (max.)	Principal	Up to 2.5 stories
	Accessory	Up to 2 stories but in no case higher than the principal building
Zoning Districts		Permitted: MR, HR, NR-1, NR-2, NR-3



[a] 0' setbacks on attached dwellings require a party wall meeting all building code standards and proper designation on a recorded plat.

(A) Frontage	(D) Accessory Building	(G) Public Sidewalk
(B) Side Setback	(E) Property Boundary	(H) Public Right-of-way
(C) Rear Setback	(F) Depth	(I) Alley

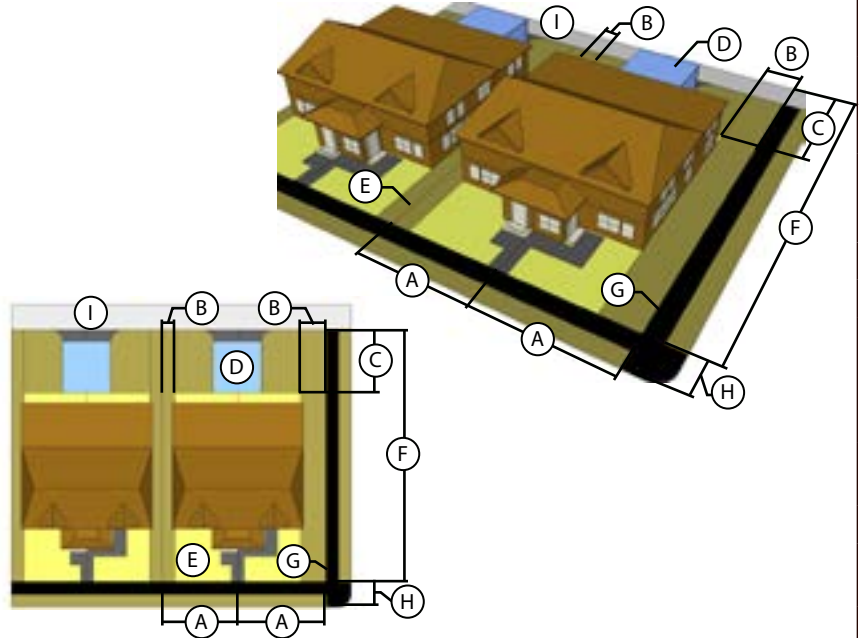
ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TYPE SD3: SEMI-ATTACHED DWELLING / SMALL LOT

Lot Frontage (min.)		30' 35' on corner lots
Setbacks: Principal Building (min.)	Front	Context of other adjacent detached dwellings or 25', whichever is less.
	Side	0' attached side [a] 5' detached side 10' on street side corner lots
	Rear	20'
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	2', 0' if party wall [a] 15' on street side corner lots
	Rear	2' 5' if alley loaded
Total Lot Coverage (max.)		60%
Building Height (max.)	Principal	Up to 2.5 stories
	Accessory	Up to 2 stories but in no case higher than the principal building
Zoning Districts	Permitted: MR, HR, NR-2, NR-3	



[a] 0' setbacks on attached dwellings require a party wall meeting all building code standards and proper designation on a recorded plat.

(A) Frontage	(D) Accessory Building	(G) Public Sidewalk
(B) Side Setback	(E) Buildable Lot Area	(H) Public Right-of-way
(C) Rear Setback	(F) Depth	(I) Alley

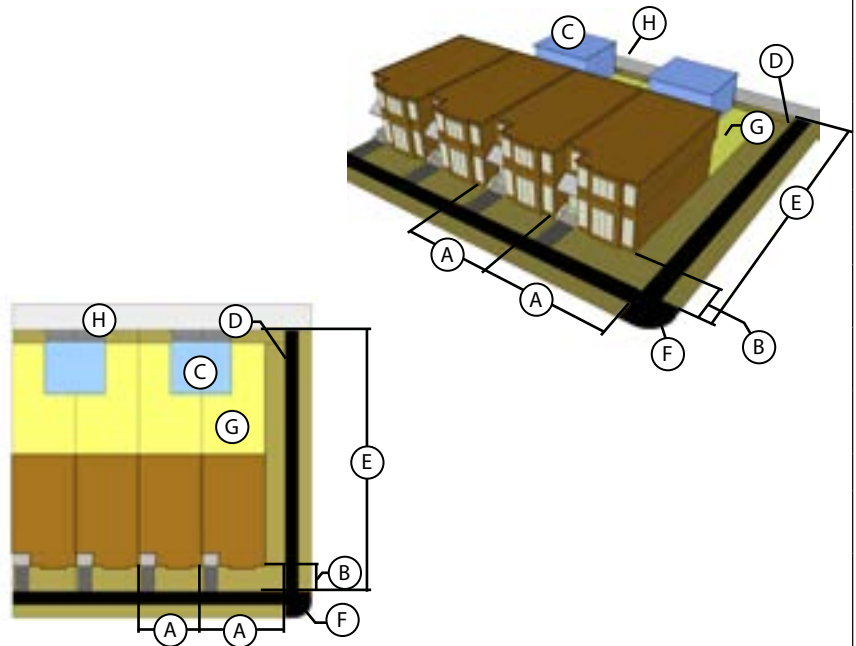
ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

c. Attached Dwellings ("Townhouse") Lot Type and Building Standards.

TYPE AD1: ATTACHED DWELLING / LARGE LOT		
Lot Frontage (min.)		25' 30' on corner lots
Setbacks: Principal Building (min.)	Front	15' – 25' [b]
	Side	0' attached side [a] 5' detached side 10' on street side corner lots
	Rear	20'
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	2', 0' if party wall [a] 15' on street side corner lots
	Rear	2' 5' if alley loaded
Total Lot Coverage (max.)		70%
Building Height (max.)	Principal	Up to 2.5 stories
	Accessory	Up to 2 stories but in no case higher than the principal building
Zoning Districts	Permitted: MR, HR, NR-2, NR-3	



- [a] 0' setbacks on attached dwellings require a party wall meeting all building code standards and proper designation on a recorded plat.
- [b] The front building line shall be located based on the context of any other adjacent detached dwellings, and located within 5' of the setbacks for these buildings, but no greater than 30'.

(A) Frontage	(D) Property Boundary	(G) Buildable Lot Area
(B) Front Setback	(E) Depth	(H) Alley
(C) Accessory Building	(F) Public Sidewalk	

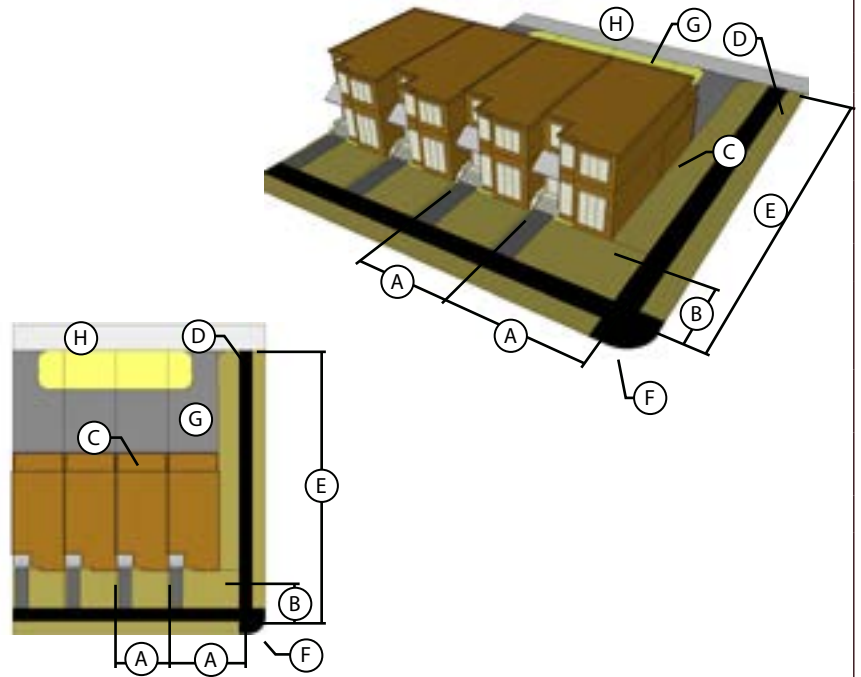
ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TYPE AD2: ATTACHED DWELLING / STANDARD LOT

Lot Frontage (min.)		20' 25' on corner lots
Setbacks: Principal Building (min.)	Front	10' – 20' [b]
	Side	0' attached side [a] 5' detached side 10' on street side corner lots
	Rear	20' 5' if alley loaded
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	2' 0' if party wall [a] 10' on street side corner lots
	Rear	2' 5' if alley loaded
Total Lot Coverage (max.)		70%
Building Height (max.)	Principal	2 Up to 3 stories
	Accessory	Up to 2 stories In no case higher than the principal building
Zoning Districts		Permitted: HR, NR-2, NR-3



- [a] 0' setbacks on attached dwellings require a party wall meeting all building code standards and proper designation on a recorded plat.
- [b] The front building line shall be located based on the context of any other adjacent detached dwellings, and located within 5' of the setbacks for these buildings, but no greater than 25'.

(A) Frontage	(D) Property Boundary	(G) Buildable Lot Area
(B) Front Setback	(E) Depth	(H) Alley
(C) Accessory Building	(F) Public Sidewalk	

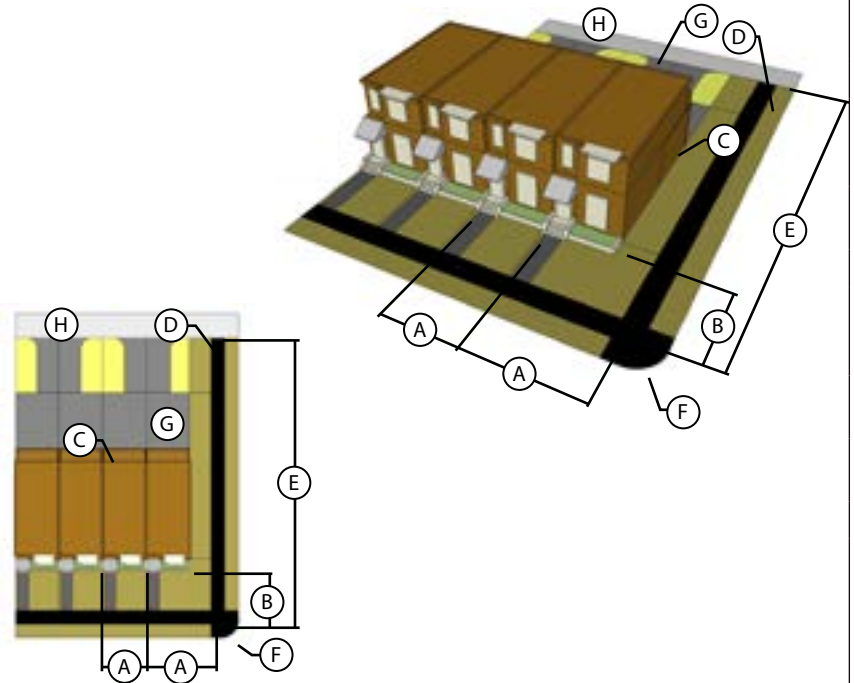
ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TYPE AD3: ATTACHED DWELLING / SMALL LOT

Lot Frontage (min.)		16' 24' on end units or corner lots
Setbacks: Principal Building (min.)	Front	10' – 20' [b]
	Side	0' attached side [a] 5' detached side 10' on street side corner lots
	Rear	20' 5' if alley loaded
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	2' 0' if party wall [a] 10' on street side corner lots
	Rear	2' 5' if alley loaded
Total Lot Coverage (max.)		85%
Building Height (max.)	Principal	2 Up to 3 stories
	Accessory	Up to 2 stories In no case higher than the principal building
Zoning Districts	Permitted: NR-3 Conditional: NR-2	



- [a] 0' setbacks on attached dwellings require a party wall meeting all building code standards and proper designation on a recorded plat.
- [b] The front building line shall be located based on the context of any other adjacent detached dwellings, and located within 5' of the setbacks for these buildings, but no greater than 25'.

(A) Frontage	(D) Property Boundary	(G) Buildable Lot Area
(B) Front Setback	(E) Depth	(H) Alley
(C) Accessory Building	(F) Public Sidewalk	

Exhibit B

*All examples have the following specifications:

- DD7 Lot Type
- All Required UDC Setbacks
- 40' Lot Frontage (minimum)
- 93.2' Lot Depth

4/12 Roof Pitch, 2.5-Story Residential

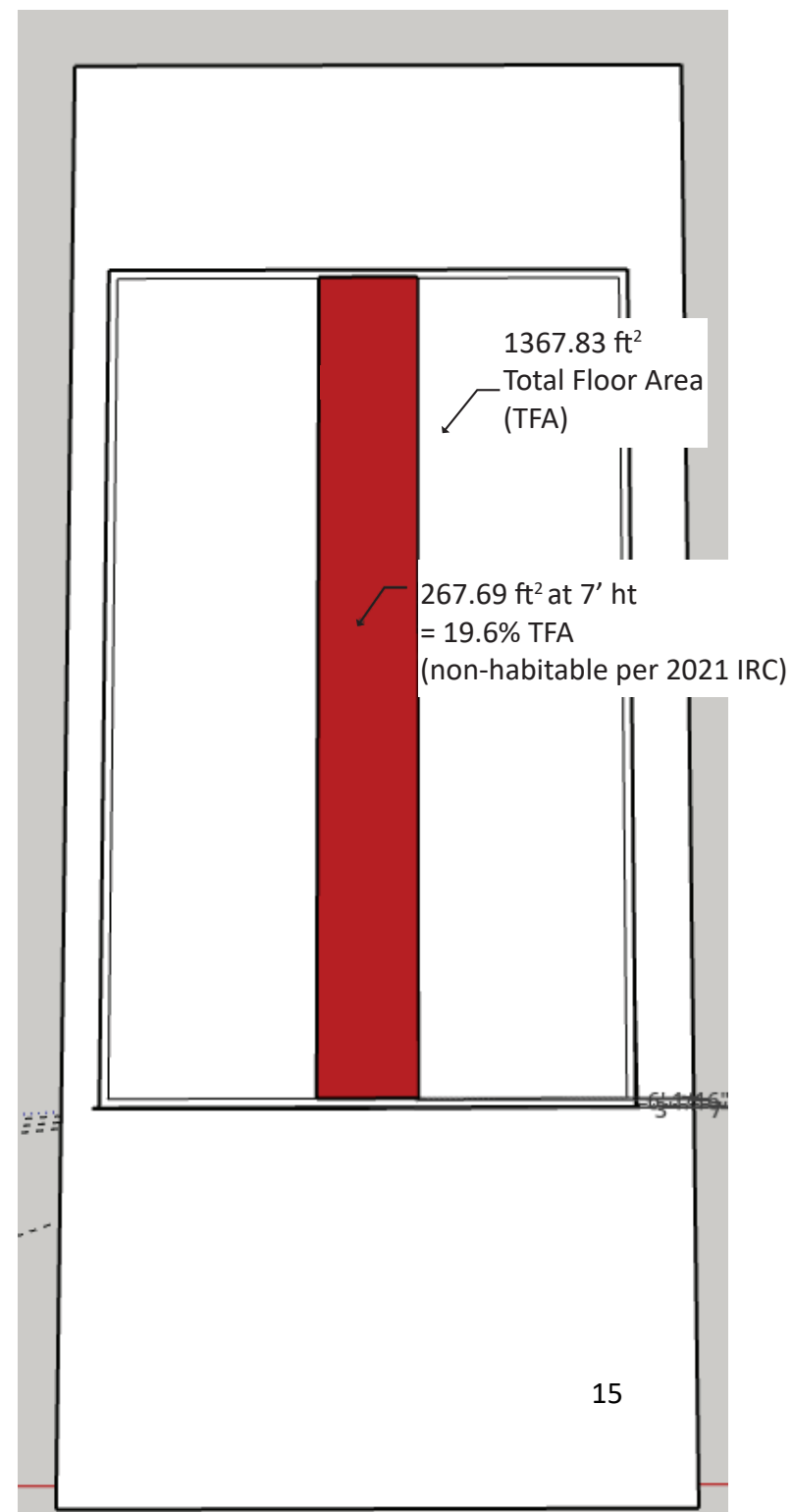
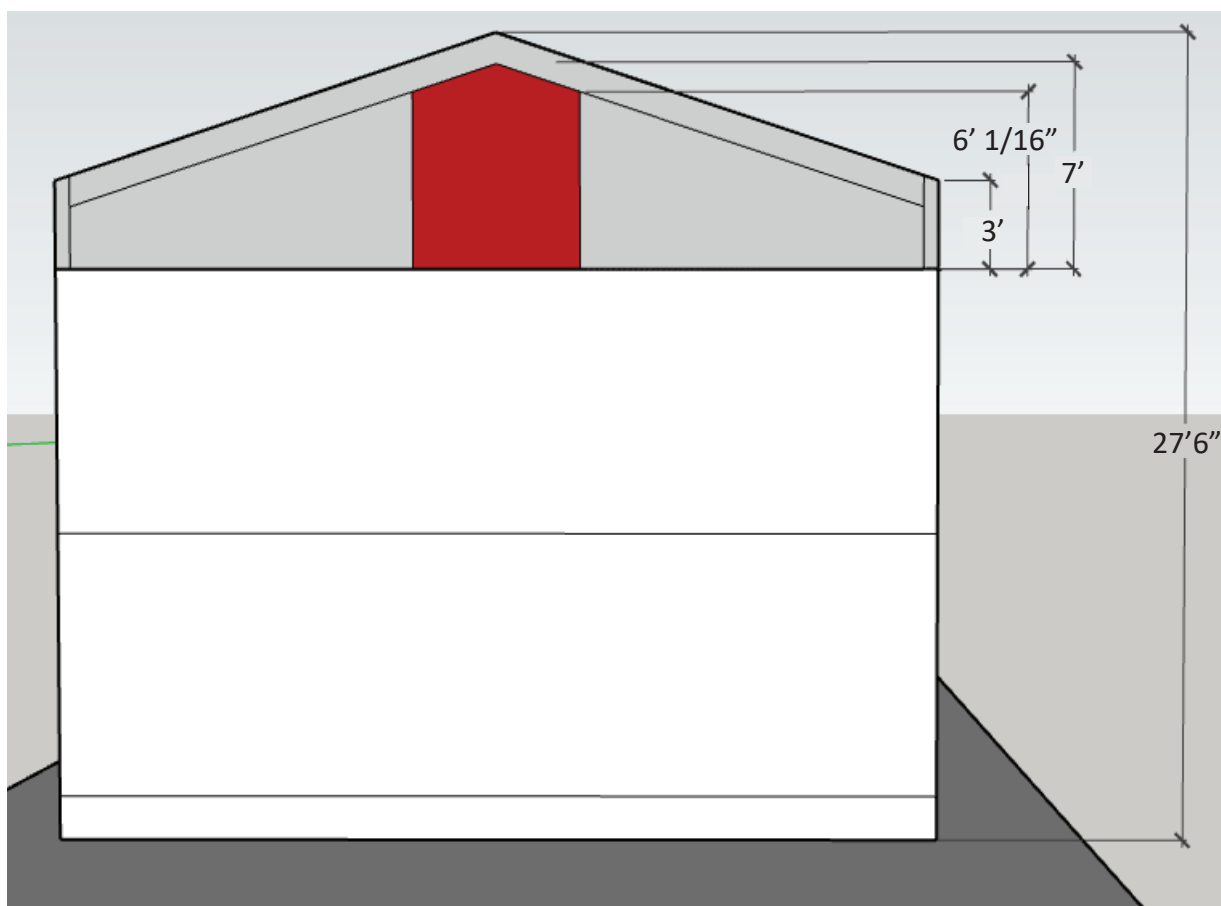


Exhibit B

*All examples have the following specifications:

- DD7 Lot Type
- All Required UDC Setbacks
- 40' Lot Frontage (minimum)
- 93.2' Lot Depth

6/12 Roof Pitch, 2.5-Story Residential

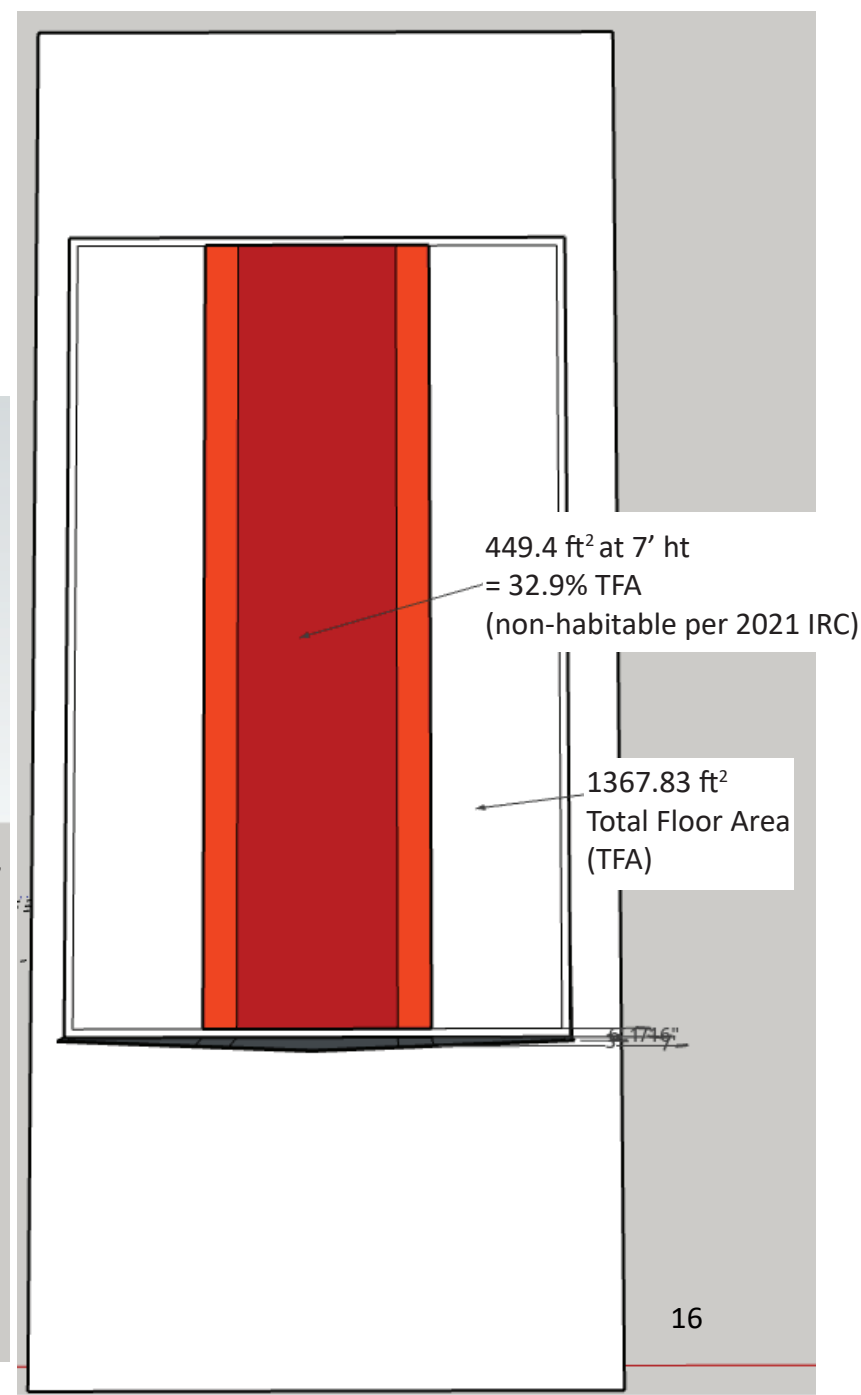
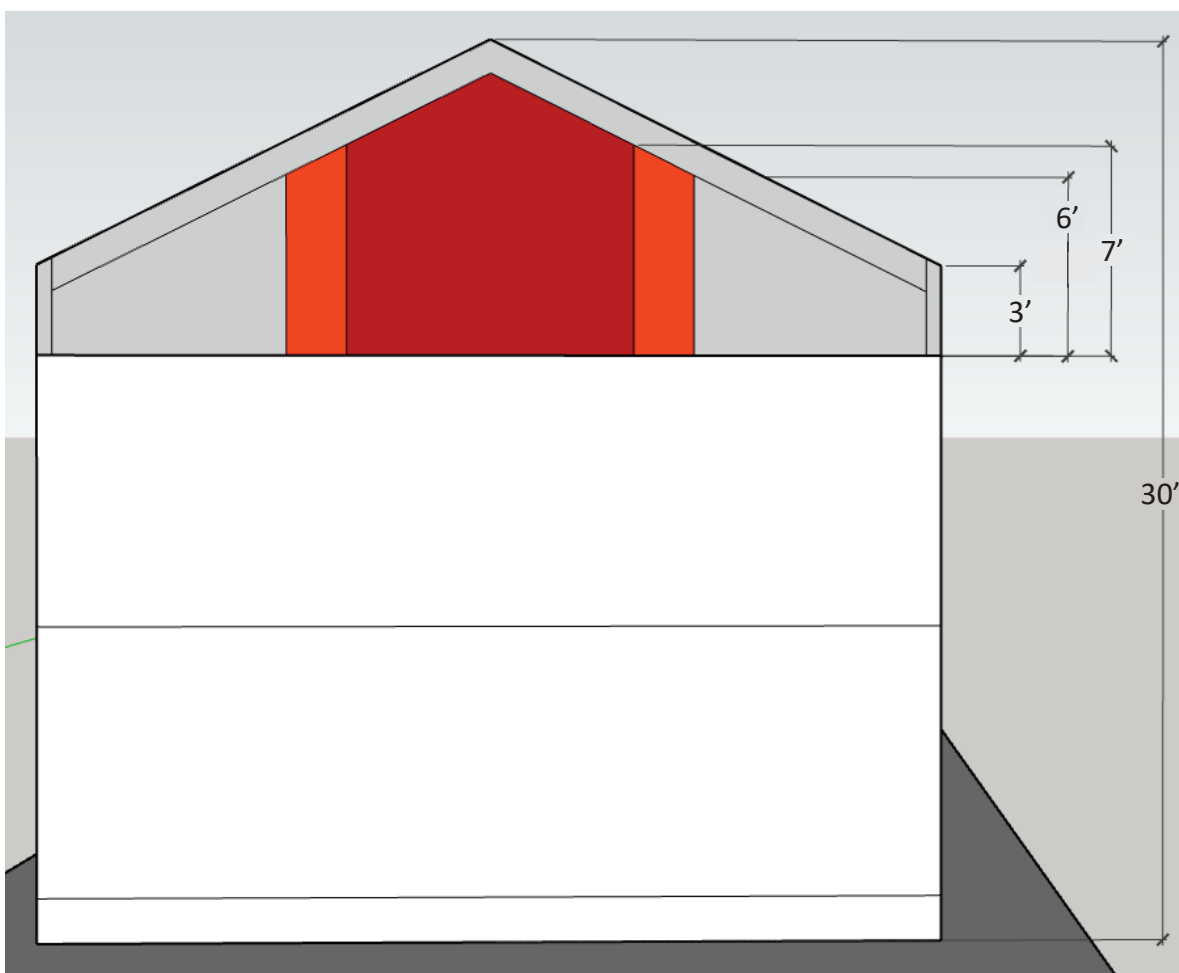


Exhibit B

*All examples have the following specifications:

- DD7 Lot Type
- All Required UDC Setbacks
- 40' Lot Frontage (minimum)
- 93.2' Lot Depth

8/12 Roof Pitch, 2.5-Story Residential

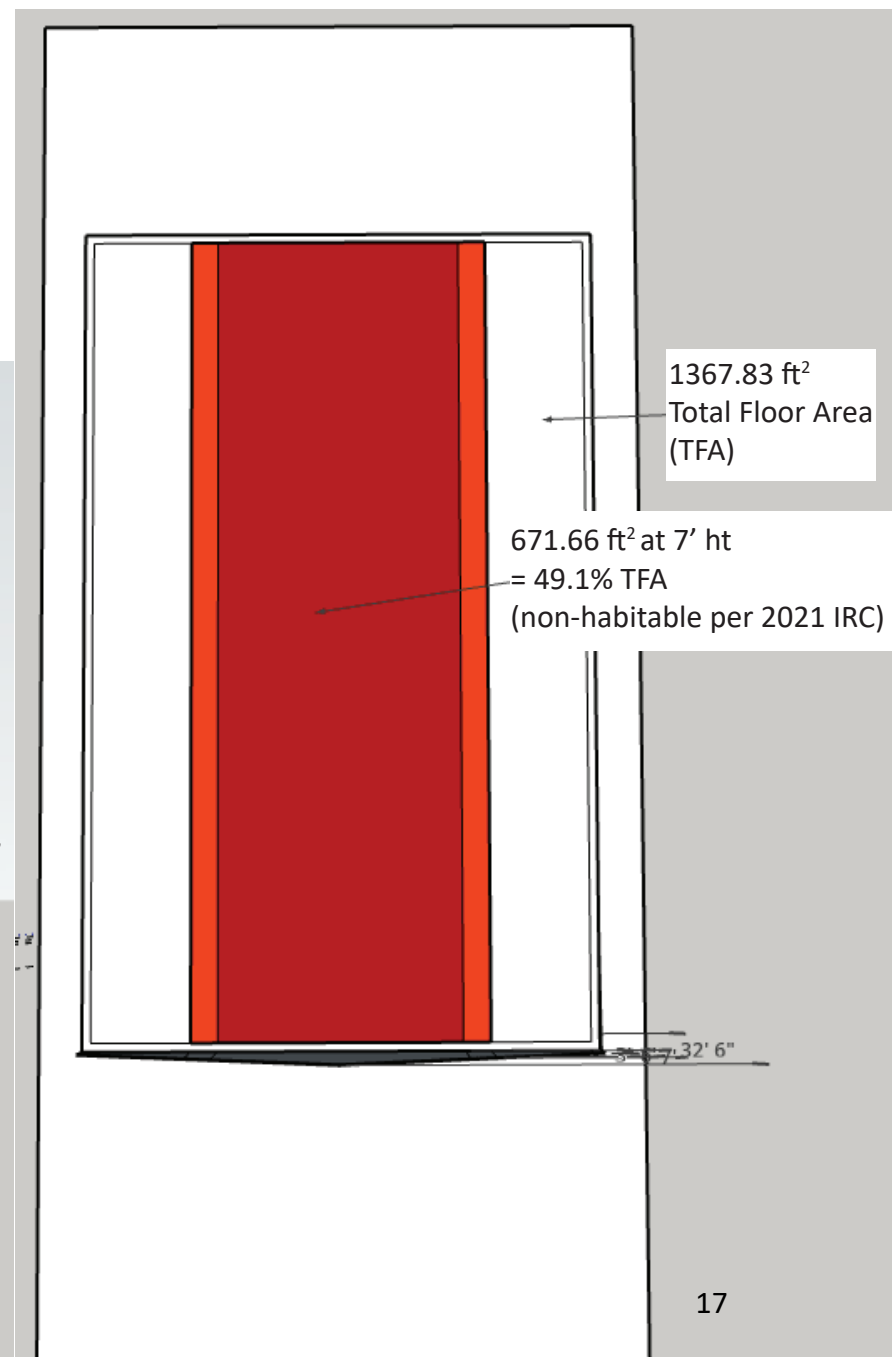
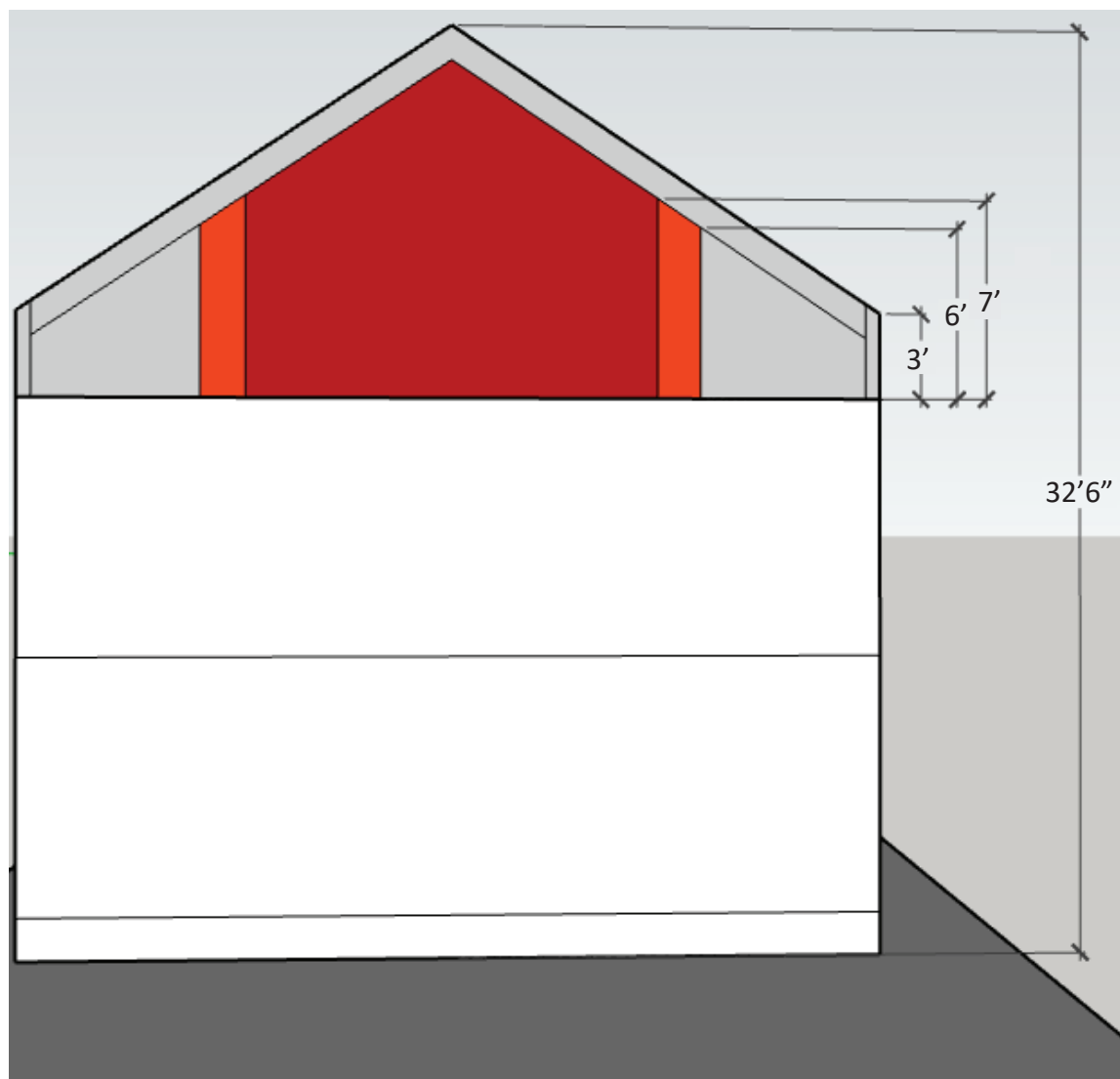


Exhibit B

*All examples have the following specifications:

- DD7 Lot Type
- All Required UDC Setbacks
- 40' Lot Frontage (minimum)
- 93.2' Lot Depth

8/12 Roof Pitch (maximum shown), 3-Story Residential

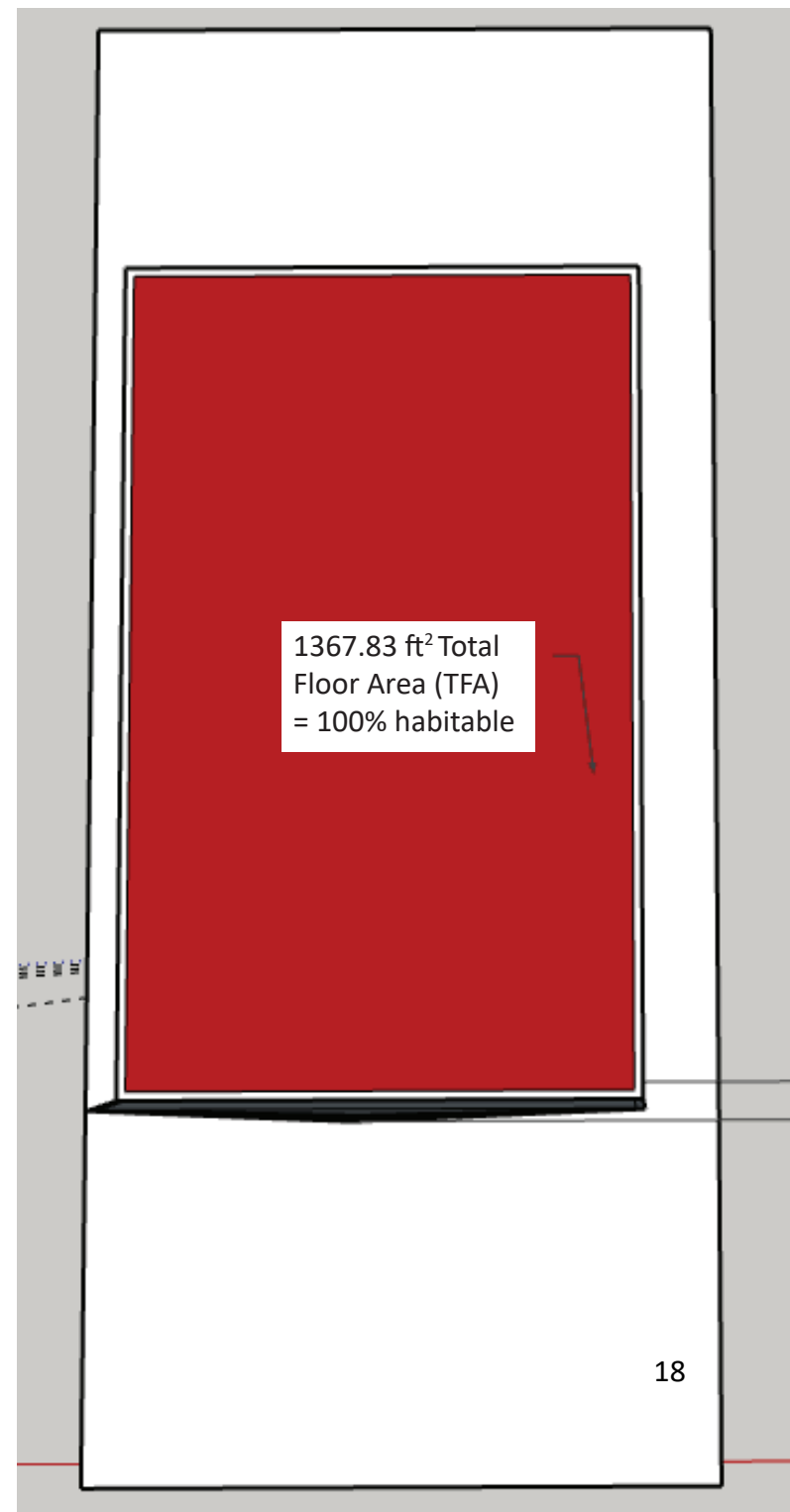
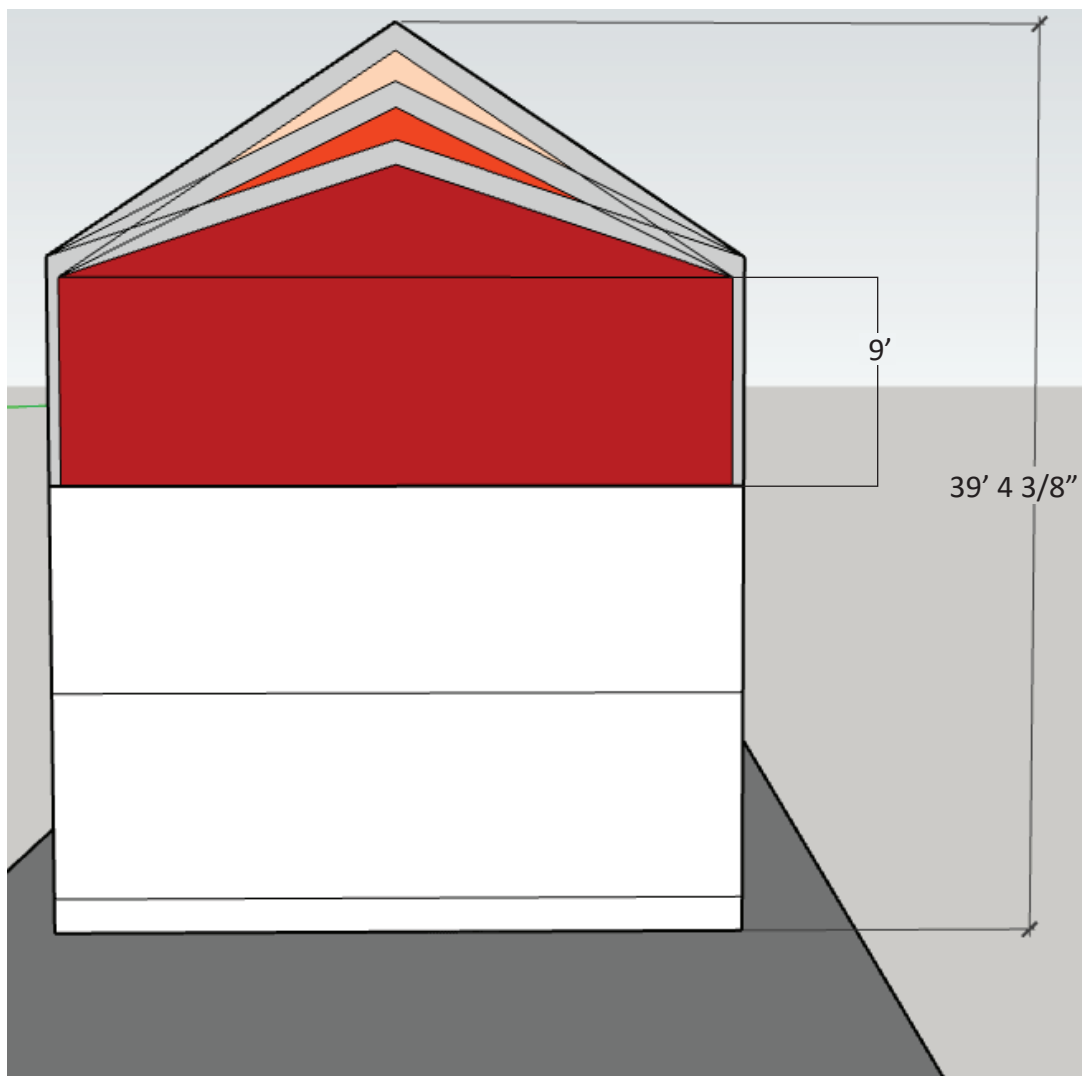


Exhibit B

*All examples have the following specifications:

- DD7 Lot Type
- All Required UDC Setbacks
- 40' Lot Frontage (minimum)
- 93.2' Lot Depth

8/12 Roof Pitch (maximum shown), 2.5-Story vs 3-Story Residential (9' Stories)

